

# **BANGLADESH 2014 HUMAN RIGHTS REPORT**

## **EXECUTIVE SUMMARY**

Bangladesh is a secular, pluralistic parliamentary democracy with a vibrant civil society. Prime Minister Sheikh Hasina and the Awami League (AL) retained power in the January 5 parliamentary elections, which were preceded by months of political turmoil and violence perpetrated by several political parties. After the opposition Bangladesh Nationalist Party (BNP) and its allies boycotted the election and engaged in a series of violent strikes in a dispute over the composition of the government that oversaw the elections, the ruling party won the elections, with more than half of all seats uncontested. Most international observers characterized the elections as controversial and falling short of international standards due to the boycott. Authorities failed at times to maintain effective control over security forces.

The most significant human rights problems were extrajudicial killings and forced disappearances, some restrictions on online speech and the press, and poor working conditions and labor rights.

Other human rights problems included security force torture and other abuse, widespread official corruption, arbitrary arrests and detentions, weak judicial capacity and independence, and lengthy pretrial detentions. Authorities infringed on citizens' privacy rights. Politically motivated and intraparty violence remained serious problems. Some nongovernmental organizations (NGOs) faced continued legal and informal restrictions on their activities. Women suffered from unequal treatment. Early and forced marriage remained a problem. Many children were compelled to work, primarily in the informal sector, due either to economic necessity or in some instances trafficking. Discrimination against persons with disabilities was a problem, especially for children seeking admittance to public school. Instances of societal violence against religious and ethnic minorities persisted, although many government and civil society leaders claimed these acts had political or economic motivations and should not be attributed wholly to religious beliefs or affiliations. Discrimination against persons based on their sexual orientation continued.

Weak regard for the rule of law not only enabled individuals, including government officials, to commit human rights violations with impunity but also prevented citizens from claiming their rights. The government took limited measures to investigate and prosecute cases of security force abuse and killing.

**Section 1. Respect for the Integrity of the Person, Including Freedom from:****a. Arbitrary or Unlawful Deprivation of Life**

The constitution provides for the rights to life and personal liberty; however, the media and local and international human rights organizations reported the government or its agents committed arbitrary or unlawful killings.

The government neither released statistics on total killings by security personnel nor took comprehensive measures to investigate cases, despite previous statements by high-ranking officials that the government would show “zero tolerance” and fully investigate all extrajudicial killings by security forces. According to the media and local human rights organizations, no case resulted in criminal punishment during the year. In the few instances in which the government brought charges, those found guilty generally received only administrative punishment, but at least one significant case was pending at year’s end. Some members of the security forces acted with impunity. The government increased the number and frequency of training sessions of investigators for an internal inquiries cell (IEC) within the paramilitary Rapid Action Battalion (RAB) that investigates cases of human rights abuses. The IEC investigated 29 cases through mid-November, compared with a total of 17 in the three previous years; findings of guilt also increased.

The legal aid and human rights NGO Ain o Salish Kendra (ASK) reported that during the first eight months of the year, security forces, including the RAB, committed an estimated total of 113 killings, and the local human rights NGO Odhikar reported security forces killed 136 persons in the first nine months of the year. There were an estimated 179 extrajudicial killings in all of 2013. The deaths occurred during raids, arrests, and other law enforcement operations. The government often described these deaths as “crossfire killings,” “gunfights,” or “encounter killings,” terms used to characterize exchanges of gunfire between RAB or police units and criminal gangs, although the media sometimes also used these terms to describe legitimate uses of police force.

On April 27, RAB officers in Narayanganj in broad daylight abducted and killed seven individuals, including a prominent local politician. The officers were allegedly freelancing for a local strongman with AL connections. The government forced into retirement and arrested the officers responsible; investigations continued at year’s end.

Political violence decreased but did not end after the January 5 elections. According to ASK, 124 persons were killed and 6,087 injured in political violence from January through August. There were 77 incidents of intraparty violence within the ruling AL, resulting in the deaths of 22 persons and the injury of 996 others. In the opposition BNP, there were 13 incidents of internal violence, in which three individuals were killed and 83 injured. These incidents were often linked to criminal activities rather than to political motives. Incidents of nonlethal, politically motivated violence also occurred.

In Nilphamari on December 2013, a group of alleged BNP and Jamaat-e-Islami (Jamaat) supporters attacked the motorcade of AL politician Asaduzzaman Noor, now the cultural affairs minister. While Noor survived, five other persons died in the clash. In the weeks following the election, local residents found the bodies of three prime suspects in the attack roadside and behind buildings. Two bodies bore marks of multiple injuries, while the third had a single gunshot wound.

#### **b. Disappearance**

Disappearances and kidnappings, some committed by security services, continued. According to Odhikar, from January through September, there were 35 disappearances allegedly involving security personnel, compared with 14 in all of 2013. For the same period, ASK estimated there were 80 disappearances, compared with 53 in all of 2013.

On May 15, a group of men in a van attempted to abduct ASK Director Mohammed Noor “Liton” Khan as he was leaving his office. Khan previously reported threats in response to his documentation of RAB abuses.

In February men in plainclothes but showing police Detective Branch identification took local BNP leader Omar Faruk from his home in the Laxmipur district of Chittagong. Faruk’s family said he was taken away in a truck with RAB markings. Both the police and RAB denied knowledge of his whereabouts; as of November, Faruk was still missing.

#### **c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment**

Although the constitution and law prohibit torture and other cruel, inhuman, or degrading treatment or punishment, local and international human rights

organizations and the media reported security forces, including the RAB and police, employed torture and physical and psychological abuse during arrests and interrogations. Security forces used threats, beatings, and electric shock, and law enforcement officers sometimes committed rapes and other sexual abuses. According to Odhikar, security forces tortured 10 persons to death in the first nine months of the year. The government rarely charged, convicted, or punished those responsible.

The Torture and Custodial Death (Prevention) Act of 2013 criminalizes torture in custody and stipulates a minimum punishment of life imprisonment, with fines for law enforcement officers and security agencies or government officials for causing the death, torture, or inhuman treatment of detainees. The act also makes an offender liable for paying the victim's family 200,000 taka (\$2,500) in compensation. Moreover, the act states that officials guilty of death in custody, torture, or inhuman treatment may not justify their acts by citing exceptional circumstances, including state of war, internal political instability, state of emergency, or an order from a superior officer or public authority.

The law contains provisions allowing a magistrate to place a suspect in interrogative custody, known as remand, during which questioning of the suspect can take place without a lawyer present.

The *Manabzamin* newspaper reported that, on November 7, police arrested Anita Bhattachariya of Sylhet on a child abduction complicity charge and placed her on a three-day remand. In a police complaint, Bhattachariya's husband alleged that during the remand, Kotwali police station officer-in-charge Monirul Islam and subinspector Hasina Akter Ankhi forced Bhattachariya to drink wine through pipes, Islam stomped on her throat, and Ankhi sexually assaulted her with a stick. Investigating authorities removed Islam and Ankhi from the station.

According to newspaper reports, in March police subinspector Abdur Rahman of Nazripur in Pirojpur forced a teenage boy and girl to strip and pose for obscene cell-phone pictures before the officer raped the girl. The subinspector and others then forced the two teenagers to marry each other.

### **Prison and Detention Center Conditions**

Prison conditions remained harsh and at times life threatening due to overcrowding, inadequate facilities, and lack of proper sanitation. Odhikar stated these conditions contributed to custodial deaths.

According to Odhikar, 39 persons died in custody through September. ASK estimated 28 custodial deaths occurred as of June 30, compared with 60 in all of 2013 and 101 in 2012.

Physical Conditions: The media and human rights observers reported the prison population as of October to be 65,662 prisoners in a system designed to hold 34,167 in 68 prisons throughout the country. According to the International Centre for Prison Studies, 69 percent of inmates were in pretrial detention or undergoing trial. Authorities often incarcerated pretrial detainees with convicted prisoners.

Due to overcrowding, prisoners slept in shifts and did not have adequate toilet facilities. All prisoners have the right to medical care and water. Human rights organizations and the media stated some prisoners did not enjoy these rights. Water available in prisons was comparable with water available in the rest of the country, which was often not potable.

Conditions in prisons and often within the same prison complex varied widely because authorities lodged some prisoners in areas subject to high temperatures, poor ventilation, and overcrowding. The law allows persons with certain educational and social standing to serve their jail sentences in “divisional” custody, which featured better conditions, including increased family visitation rights and access to household staff.

While the law requires holding juveniles separately from adults, many juveniles were incarcerated with adults. Children were sometimes imprisoned (occasionally with their mothers) despite laws and court decisions prohibiting the imprisonment of minors.

Authorities routinely held female prisoners separately from men. Although the law prohibits women in “safe custody” (usually victims of rape, trafficking, and domestic violence) from being housed with criminals, officials did not always provide separate facilities.

Administration: Prison recordkeeping was adequate. Prison officials allowed prisoners to submit uncensored complaints and occasionally investigated such complaints. Authorities did not use alternatives to sentencing for nonviolent offenders, and prison ombudsmen were not available to prisoners. Authorities permitted religious observance for prisoners.

Independent Monitoring: The government did not permit prison visits by the International Committee of the Red Cross or any other independent human rights monitors. The government allowed the Bangladesh Red Crescent Society to visit foreign detainees. Government-appointed committees composed of prominent private citizens in each prison locality monitored prisons monthly but did not publicly release their findings. District judges occasionally visited prisons.

#### **d. Arbitrary Arrest or Detention**

The constitution prohibits arbitrary arrest and detention, but the law permits authorities to arrest and detain persons suspected of criminal activity without an order from a magistrate or a warrant.

The government moved to increase the jurisdiction of mobile courts headed by executive branch magistrates and give the courts powers to sentence defendants based on witness testimony instead of only on confessions. Mobile courts rendered immediate verdicts that often included prison terms; defendants were not afforded the opportunity for legal representation. The use of mobile courts decreased with the marked postelection decrease in nationwide strikes.

#### **Role of the Police and Security Apparatus**

Police, who fall under the jurisdiction of the Ministry of Home Affairs, have a mandate to maintain internal security and law and order. The army, organized under the prime minister's office, is responsible for external security, but it can be called to help with a variety of domestic security responsibilities when required "in aid to civil authority." The army and ministry security forces maintained a significant presence in the Chittagong Hills Tracts (CHT) to monitor the 1997 CHT Peace Accord.

Civilian authorities maintained effective control over the armed forces, and the government has mechanisms to investigate and punish abuse and corruption. These mechanisms were not regularly employed, however. The government took steps to improve police professionalism, discipline, training, and responsiveness and to reduce corruption. Police basic training continued to incorporate instruction on the appropriate use of force as part of efforts to implement community-based policing.

Despite such efforts, security forces, including the RAB, continued to commit abuses with impunity. Plaintiffs were reluctant to accuse police in criminal cases

due to lengthy trial procedures and fear of retribution. Reluctance to bring charges against police also perpetuated a climate of impunity.

Security forces failed to prevent societal violence (see section 6).

### **Arrest Procedures and Treatment of Detainees**

The government or a district magistrate may order a person detained for 30 days to prevent the commission of an act that could threaten national security; however, authorities sometimes held detainees for longer periods. A magistrate must inform a detainee of the grounds for detention within 15 days, and regulations require an advisory board to examine a detainee's case after four months. Detainees have the right to appeal.

There is a functioning bail system in the regular courts. Authorities granted criminal detainees charged with crimes access to attorneys. The government sometimes provided detainees with state-funded defense attorneys. The few legal aid programs for detainees that existed were underfunded. Authorities generally permitted defense lawyers to meet with their clients after formal charges were filed in the courts, which in some cases occurred weeks or months after the initial arrest.

Arbitrary Arrest: Arbitrary arrests occurred, often in conjunction with political demonstrations, and the government held persons in detention without specific charges, sometimes in an attempt to collect information about other suspects.

Police arrested BNP advisor Khandaker Mahbub Hossain on January 7, shortly after a public event where he called the elections “stigmatized” and “farcical.” Hossain, a prominent attorney, was charged with arson and vandalism during a March 2013 protest. He was released on bail on February 3. Police dropped the charges in August, citing no evidence of Hossain's involvement.

Pretrial Detention: Arbitrary and lengthy pretrial detention continued to be a problem due to bureaucratic inefficiencies, limited resources, lax enforcement of pretrial rules, and corruption. According to the Bangladesh International Arbitration Centre, approximately two million civil and criminal cases were pending. In some cases the length of pretrial detention equaled or exceeded the sentence for the alleged crime.

### **e. Denial of Fair Public Trial**

The law provides for an independent judiciary; however, a provision of the constitution that accords the executive branch authority over judicial appointments of lower courts and compensation for judicial officials undermines full judicial independence. Some judges reported retaliatory geographic transfers. The 16th constitutional amendment giving parliament impeachment power over high court judges passed in September, but as of November no implementing law was written, and at least one legal challenge was in process.

Corruption and a substantial backlog of cases hindered the court system, and extended continuances effectively prevented many defendants from obtaining fair trials due to witness tampering, victim intimidation, and missing evidence. Human rights observers stated that magistrates, attorneys, and court officials demanded bribes from defendants in many cases.

In December 2013 prison authorities executed Abdul Quader Mollah, despite concerns expressed by some in the international community surrounding the process leading up to his execution. In February 2013 the Bangladeshi International Crimes Tribunal (ICT) had convicted Mollah and sentenced him to life in prison for war crimes committed during the country's 1971 war of independence. After parliament amended the ICT law to allow appeals by the prosecution, the Supreme Court Appellate Division changed his sentence to death. Although the court accepted Mollah's right to file a review petition, it subsequently ruled against defense arguments.

In September the ICT found the NGO Human Rights Watch (HRW) guilty of 2013 contempt of court charges for asserting collusion and bias among prosecutors and judges, failure to take steps to protect defense witnesses, changes in the trial court panel, and lack of evidence to establish guilt beyond a reasonable doubt in the war crimes conviction of Ghulam Azam. The ICT cautioned HRW to be more circumspect and cautious in its comments about the country's judiciary.

ICT prosecutions of accused 1971 war criminals continued. No verdicts were announced until November, when the ICT issued death sentences in separate cases against Motiur Rahman Nizami and Mir Quasem Ali. At the same time, the Supreme Court Appellate Division upheld one of two death sentences against Mohammad Kamaruzzaman. All three men were prominent Jamaat leaders, and Jamaat called nationwide strikes in protest.

## **Trial Procedures**



The law provides for the right to a fair trial, but the judiciary did not always protect this right due to corruption and weak human and institutional capacities. Judges received base pay from 29,200 taka (\$365) to 39,600 taka (\$495) per month, depending on qualifications. Prosecutors' low monthly retainer of 3,000 taka (\$37.50) plus 200 taka (\$2.50) per hour in court led some to accept bribes to influence the outcome of a case.

Defendants are presumed innocent and have the rights to appeal and see the government's evidence. Defendants also have the right to be informed promptly and in detail of the charges against them. The Speedy Trial Act is intended to prevent undue delay of proceedings for certain offenses, such as murder, sexual assault, and robbery but frequent adjournments contributed to the backlog of cases. No jury system exists. Judges decide cases, and trials are public. Indigent defendants have the right to a public defender. Defendants also have adequate time to prepare a defense. Accused persons have the right to be represented by counsel, review accusatory material, call and question witnesses, and appeal verdicts. The government, however, frequently did not respect these rights.

On August 10, Shafiqul Islam Masud, assistant secretary of the Jamaat-e-Islami Dhaka City Unit, was arrested, charged, and held in police custody with 154 others for arson attacks and vandalism in 2013. He was arrested and held four additional times in August and September 2014. According to a prominent human rights lawyer, Masud's whereabouts during his detentions were unknown, and lawyers were not allowed to speak with him. Defense lawyers were not allowed to speak before the court during his September 23 and 25 court appearances.

### **Political Prisoners and Detainees**

While political affiliation was sometimes a factor in the arrest and prosecution of members of the opposition parties, the government did not prosecute individuals solely on political charges.

### **Civil Judicial Procedures and Remedies**

Individuals and organizations may seek administrative and judicial remedies for human rights violations; however, the civil court system was slow and cumbersome, deterring many from filing complaints. The government did not interfere with civil judicial procedures. Corruption and outside influence were problems in the civil judicial system. Alternative dispute resolution for civil cases allowed citizens to present their cases for mediation. According to government

sources, the wider use of mediation in civil cases accelerated the administration of justice, but there was no assessment of its fairness or impartiality.

### **Property Restitution**

The government did not take action to compensate individuals, primarily Hindus, who lost their land under the 1974 Vested Property Act (see section 2.d.).

Minority communities reported many land ownership disputes that disproportionately displaced minorities, especially in areas near new roads or industrial development zones, where land prices had recently increased. They also claimed that local police, civil authorities, and political leaders were sometimes involved or shielded politically influential land grabbers from prosecution (see section 6.).

### **f. Arbitrary Interference with Privacy, Family, Home, or Correspondence**

The law does not prohibit arbitrary interference with private correspondence; rather, intelligence and law enforcement agencies may monitor private communications with the permission of the Ministry of Home Affairs. Police rarely obtained warrants as required, and authorities did not punish officers who violated these procedures. Human rights organizations alleged the Special Branch of police, the National Security Intelligence, and the Directorate General of Forces Intelligence employed informers to conduct surveillance and report on citizens perceived to be critical of the government. The government also routinely conducted surveillance on opposition politicians. Human rights organizations and news outlets reported police sometimes entered private homes without obtaining proper authorization.

## **Section 2. Respect for Civil Liberties, Including:**

### **a. Freedom of Speech and Press**

The constitution provides for freedom of speech and press, but the government sometimes failed to respect these rights. There were some limitations on freedom of speech. Some journalists self-censored their criticisms of the government due to fear of harassment and reprisal.

Freedom of Speech: The constitution equates criticism of the constitution with sedition. Punishment for sedition ranges from three years' to life imprisonment,

but the courts did not sentence anyone under these laws. The law limits hate speech but does not define clearly what constitutes hate speech, leaving the government with broad powers of interpretation. The government can restrict speech deemed to be against the security of the state; against friendly relations with foreign states; and against public order, decency, or morality; or that constitutes contempt of court, defamation, or incitement to an offense.

In February the ICT brought contempt charges against British journalist David Bergman for blog postings that were critical of ICT processes. In August, Bergman's defense argued his criticism was covered by laws protecting freedom of thought and expression, and intended to improve the court. After several court appearances and hearings, Bergman was convicted of contempt on December 1 and ordered to pay a fine of 5,000 taka (\$62.50) or be jailed for seven days.

In September, Tonmoy Malik of Khulna was fined 10,000 taka (\$125) and sentenced to seven years' imprisonment under the Information and Communication Technology Act (ICTA) for distributing a parody song about Prime Minister Sheikh Hasina and her father, Sheikh Mujibur Rahman, the country's first prime minister.

Press Freedoms: The independent media were active and expressed a wide variety of views; however, the media that criticized the government sometimes experienced negative government pressure.

On August 4, the cabinet approved a national broadcast policy restricting several types of content in programs and advertising, including content that demeans officials; depicts rebellion, anarchy, or violence and undermines the public interest; or hampers foreign relations. The policy, which generated widespread public criticism, had yet to be enacted into law as of November.

On August 19, authorities arrested Rabiulla Rabi, news editor of the newspaper *Inqilab*, and held him under the ICTA for an online report suggesting a police official gained improper immunity by invoking the name of the prime minister. Rabi's newspaper later published a notice admitting it had not maintained "adequate cautions." Rabi and two others faced a potential sentence of 14 years in prison and a fine of 10 million taka (\$125,000); the case remained unresolved at year's end.

The government owned one radio station and one television station. The law mandates the Bangladesh public television station (BTV) remain the country's

only terrestrial (nonsatellite) broadcast channel. An estimated 60 percent of the population did not have access to private satellite channels, and surveys indicated almost 80 percent of citizens received their information from television. The BTV broadcast parliamentary sessions and government programming but rarely broadcast opposition views. Cable operators generally functioned without government interference. The government required all private stations to broadcast, without charge, selected government news programs and speeches by the prime minister.

Violence and Harassment: Authorities, including intelligence services on some occasions, subjected journalists to physical attack, harassment, and intimidation. According to Odhikar, one journalist was killed and 116 were attacked or threatened from January through September. According to ASK, three journalists were killed, seven were attacked or threatened by security forces, and another 123 were attacked or threatened by political parties, government officials, or criminals during the first six months of the year.

Censorship or Content Restrictions: The government indirectly sought to censor the media through threats and harassment. According to journalists, on multiple occasions government officials asked privately owned television channels not to broadcast the opposition's activities and statements. The well-regarded newspapers *Prothom Alo* and *Daily Star* were denied access to prime ministerial events because they published reports critical of the government and prime minister.

According to some journalists and human rights NGOs, journalists engaged in self-censorship, particularly due to fear of security force retribution. Although public criticism of the government was common and vocal, some media figures expressed fear of harassment by the government.

The Awami League government, like its BNP predecessor, issued new broadcast licenses to political supporters and denied them to political opponents.

The government did not subject foreign publications and films to stringent review and censorship, but some foreign correspondents in the country reported pressure to self-censor. A government-managed film censorship board reviewed local and foreign films and had the authority to censor or ban films on the grounds of state security, law and order, religious sentiment, obscenity, foreign relations, defamation, or plagiarism, but was less strict than in the past. Video rental

libraries and DVD shops stocked a wide variety of films, and government efforts to enforce censorship on rentals were sporadic and ineffective.

The government at times censored immodest or obscene photographs or objectionable comments regarding national leaders.

While the government expressed hopes that the National Broadcast Policy would strengthen the broadcasting industry, there were no significant government initiatives to foster media independence.

Under intense public pressure, the government on October 13 terminated Information Technology and Communications Minister Latifur Siddique for his public remarks in New York criticizing the Hajj and the Bishwa Ijtema (an annual Bangladeshi Muslim event, which is the world's second-largest religious gathering). The ruling party expelled Siddique for his comments. Following a legal petition by a Bangladeshi citizen, a court issued warrants for his arrest. Siddique returned to the country in late November and presented himself to court, which sent him to prison.

### **Internet Freedom**

Individuals and groups generally engaged in the expression of views via the internet, although some activists stated that fear of prosecution under the ITCA limited their online speech. The Bangladesh Telecommunication Regulatory Commission (BTRC) filtered internet content the government deemed harmful to national unity and religious beliefs. The government also blocked some Facebook pages, including pages depicting the Prophet Muhammad and pages critical of both the prime minister and opposition leader.

The government used the ICTA and the threat of sedition charges, which carry a possible death penalty, to limit online activity. For example, on August 19, the Detective Branch arrested former RAB intelligence wing deputy director Mohammad Shamsuzzoha for a Facebook post allegedly derogatory to the prime minister, other government ministers, and the ruling AL.

The 2013 amendment to the ICTA increased penalties for cybercrime, made more offenses ineligible for bail, and gave law enforcement officers broader authority to arrest violators without a court order. Opponents of the law stated that section 57, which criminalizes the posting of inflammatory or derogatory information against the state or individuals online, stifles freedom of speech. In March authorities

arrested and held without bail two teenage boys under the ICTA for allegedly posting comments derogatory to Islam and the Prophet Muhammad on their Facebook accounts.

The BTRC reported approximately 1.5 million internet subscribers and more than 39 million additional mobile internet subscribers as of August. According to the International Telecommunication union, approximately 6.5 percent of the population used the internet in 2013.

### **Academic Freedom and Cultural Events**

The government had few restrictions on academic freedom or cultural events. Media groups reported authorities discouraged research on sensitive religious and political topics that might fuel possible religious or communal tensions. Academic publications on the 1971 independence war were also subject to scrutiny and government approval. The ICT contempt conviction of journalist David Bergman (see section 1.e.) included a count based on Bergman's blog post questioning the accuracy of the official government figure of three million Bangladeshis killed in the war.

### **b. Freedom of Peaceful Assembly and Association**

The constitution provides for the freedoms of assembly and association, and the government generally respected these rights; however, there were instances of governmental action to limit freedom of assembly during periods of political protest and unrest.

#### **Freedom of Assembly**

The government generally permitted rallies. On occasion the government prevented political groups from holding meetings and demonstrations. The law authorizes the government to ban assemblies of more than four persons. A Dhaka Metropolitan Police order requires advance permission for gatherings such as protests and demonstrations. According to human rights NGOs, authorities increasingly used this provision. Occasionally, police or ruling party activists used force to disperse demonstrations.

Police stopped a May 3 "human chain" protest in front of the parliament building against extrajudicial killings and forced disappearances. Protest organizers said they wrote to the Dhaka Metropolitan Police for permission despite not having had

to do so for previous protests and that police confiscated banners that asked for justice but had no antigovernment content.

A May 22 BNP public meeting about forced disappearances and alleged extrajudicial killings was canceled after police locked participants out of the Dhaka University-area auditorium. The media reported police claims the BNP did not have permission to hold the meeting; however, a BNP spokesperson stated police at the scene gave no reason for the lockout. A BNP member stated that, as of early October, authorities denied the party permission to hold rallies at least 20 times; at other times authorities granted permission, but too late for the rally to be conducted.

### **Freedom of Association**

The law provides for the right of citizens to form associations, subject to “reasonable restrictions” in the interest of morality or public order, and the government generally respected this right. Individuals were free to join private groups. The American Center for International Labor Solidarity (Solidarity Center) reported a sustained increase in union registrations, with 109 unions registered through September, compared with 85 in all of 2013 and one in 2012. The government’s NGO Affairs Bureau sometimes withheld its approval for foreign funding to NGOs working in sensitive areas such as human rights, labor rights, indigenous rights, or humanitarian assistance to Rohingya refugees (see sections 2.d., 5, and 7.a.).

The cabinet approved the draft act under consideration, the Foreign Donations (Voluntary Activities) Regulation Act, on December 2, which was the subject of significant media coverage and international comment. It would increase the length of time for which NGO registrations are valid, but would place additional restrictions on the receipt of foreign funds by NGOs or government officials. The act also would require approval and monitoring of each project by the NGO Affairs Bureau and give the director general of the bureau the authority to impose sanctions including fines up to three times the amount of the foreign donation or closure of an NGO.

### **c. Freedom of Religion**

See the Department of State’s *International Religious Freedom Report* at [www.state.gov/religiousfreedomreport/](http://www.state.gov/religiousfreedomreport/).

#### **d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons**

The law provides for freedom of movement within the country, foreign travel, emigration, and repatriation, and the government generally respected these rights, except in two sensitive areas, the CHT and Cox's Bazar.

The government did not fully cooperate with the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, asylum seekers, stateless persons, and other persons of concern. For example, the government did not allow the UNHCR to expand services to all persons the UNHCR deemed of concern.

Foreign Travel: Some senior opposition officials reported extensive delays in getting their passports renewed; others reported harassment and delays at the airport when departing the country. The international travel ban continued on war crimes suspects from the 1971 independence war.

The country's passports are invalid for travel to Israel.

#### **Internally Displaced Persons (IDPs)**

Low-level armed conflict in the CHT in 1973-97 displaced tens of thousands of indigenous persons internally. During the conflict the government relocated landless Bengalis from the plains with the unstated objective of changing the demographic balance in the CHT toward a Bengali majority.

The IDPs in the CHT had limited physical security. Indigenous community leaders maintained that settlers' violations of indigenous persons' rights, sometimes with the involvement of security forces, were widespread.

The IDPs in the CHT also lacked sufficient access to courts and legal aid. The CHT Commission, composed of experts from inside and outside the country who sought to promote respect for rights in the CHT, found that a lack of information and lawyers to assist indigenous persons hindered IDP access to justice. The commission reported settlers expropriated indigenous land using false titles, intimidation, force, fraud, and manipulation of government eminent-domain claims (see section 6).



The number of IDPs in the CHT remained disputed. In 2000 a government task force estimated the number to be 500,000, which included nonindigenous persons. The CHT Commission estimated that there were slightly more than 90,000 indigenous IDPs. The prime minister pledged to resolve outstanding land disputes in the CHT to facilitate the return of the IDPs and to close the remaining military camps, but the task force on IDPs remained unable to function due to a dispute over classifying settlers as IDPs. The commission reported the displacement of several indigenous families to create border guard camps and army recreational facilities. No land disputes were resolved during the year.

### **Protection of Refugees**

The government and the UNHCR provided temporary protection and basic assistance to approximately 32,000 Rohingya refugees from Burma living in two official camps (Kutupalong and Nayapara). The government and the UNHCR estimated an additional 200,000-500,000 undocumented Rohingya lived in various villages and towns outside the two official refugee camps. Most of these undocumented Rohingya lived among the local population in Teknaf and Ukhyia subdistricts in Cox's Bazar District, including approximately 42,000 at an unofficial site adjacent to the official Kutupalong refugee camp and 15,000 at a site called Leda. Led by the Ministry of Foreign Affairs, the government during the year released and took initial steps to implement a national strategy on Rohingya with six key elements: border management, addressing security threats, humanitarian assistance, strengthened engagement with Burma, internal coordination on Rohingya problems, and surveying the undocumented Rohingya.

In July the government issued a circular instructing local registrars not to register marriages between Rohingya refugees and citizens. Registration under the Foreign Marriage Act is available only to residents of the country. Many marriages between citizens were unregistered, creating social vulnerability, especially for women and children.

Access to Asylum: The law does not provide for granting asylum or refugee status, nor has the government established a formal system for providing protection to refugees. The government provided some protection to Rohingya refugees from Burma already resident in the country, but it continued to deny asylum to the undocumented Rohingya, whom it categorized as illegal economic migrants. While the government cooperated with the UNHCR in providing temporary protection and basic assistance to registered refugees already resident in two official camps, it did not allow the UNHCR to expand services to undocumented

Rohingya or to new arrivals fleeing violence in bordering Rakhine State, Burma, all of whom were persons of concern to the UNHCR.

Refoulement: Continued violence and human rights abuses against the Rohingya in Burma prevented the safe and voluntary return of refugees to their homes. Between January and March, according to the UNHCR, the Ministry of Foreign Affairs and Border Guard Bangladesh forcibly turned back an estimated 1,600 Rohingya to Burma. According to the UNHCR, which maintained a field presence in both countries, many of these individuals were likely entitled to refugee status and protection. Despite these expulsions, the border remained porous, and the UNHCR noted the existence of considerable daily cross-border movement for trade, smuggling, and illegal migration.

Refugee Abuse: The UNHCR reported cases of refugee abuse, including rape, assault, domestic violence, deprivation of food, arbitrary detention, and documentation problems.

Employment: The government did not allow Rohingya refugees living in the country to work locally. Refugees had limited freedom of movement beyond the camps and had to obtain permission for all movement outside the camps. Despite these constraints some refugees worked illegally as manual laborers or rickshaw pullers in the informal economy. Undocumented Rohingya also worked illegally, mostly in day-labor jobs.

Access to Basic Services: Working with the UNHCR, the government continued to improve some aspects of the official refugee camps following findings in recent years that sanitation, nutrition, and shelter conditions had fallen below minimum international standards. Some basic needs remained unmet, and the camps remained overcrowded, with densities on par with the country's urban slums. A 2012 nutrition survey report from the UNHCR and World Food Program stated the prevalence of malnourished (stunted) and underweight children in refugee camps remained higher than in the rest of the country and above the emergency threshold levels set by the World Health Organization.

Public education, while mandatory as of 2010 through eighth grade throughout the country, was offered only through seventh grade in the camps, compared with fifth grade in previous years. Government authorities did not allow refugees outside the camps to attend school, but some did so.

Government authorities did not allow registered or unregistered Rohingya formal and regular access to public health care. Instead, the UNHCR and NGOs provided basic health services in the official camps to registered refugees. Although humanitarian assistance provided by NGOs served registered Rohingya refugees, undocumented Rohingya, and the local population, the government's restrictions on NGO activities outside the camps limited the unregistered population's access to basic medical care and other services.

International NGOs faced difficulties in providing basic services to undocumented Rohingya and to the surrounding impoverished host communities due to extended delays by the NGO Affairs Bureau in granting permission for them to operate. In August the government issued a temporary authorization allowing international organizations and international NGOs to continue providing basic assistance, such as water, sanitation, health care, and education, to registered and some unregistered Rohingya.

Registered refugees did not have the right to legal recourse through the formal legal system, although they were able to take legal complaints to a local camp official, who could mediate disputes. Members of the unregistered population had no legal protection and were sometimes arrested because the government viewed them as illegal economic migrants.

### **Stateless Persons**

The Rohingya in Bangladesh are legally stateless. They cannot derive citizenship from birth in the country, marriage with local citizens, or any other means.

### **Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government**

The constitution provides citizens the ability to change their government through free and fair elections, but recent national elections were marred by violence and an opposition boycott.

### **Elections and Political Participation**

Recent Elections: The main opposition party boycotted the January 5 parliamentary elections due to a dispute over the composition of the government that would conduct those elections. More than half of all seats were uncontested, and many more had only nominal contests. Because there were few contests, many

voters were unable to exercise their choice. Months of political turbulence and violence preceded the elections as the opposition tried to force the government to concede to its demands. Independent election observers witnessed more than 100 incidents of violence in polling stations or the immediate vicinity and some incidents of voter obstruction and forced voting. Prime Minister Sheikh Hasina and the ruling AL party retained power with 235 out of 300 elected seats. After its boycott of the elections, the BNP held no seats in parliament. The official opposition party, the Jatiya Party, which had 36 elected seats, was also part of the ruling coalition. Parties that supported the government held most of the remaining seats. Sheikh Hasina's cabinet included representatives from the other parties in her coalition.

Multiple sources reported violence, intimidation, and other irregularities in the five rounds of subdistrict local government elections from February through April. Some newspapers published photographs of ruling party activists marking full books of ballots. The nonpartisan civil society network Bangladesh Election Working Group described the overall integrity of the polling process as undermined by the scale of violations relating to fraudulent activity--with later rounds reportedly having more rigging, violence, and intimidation.

Political Parties and Political Participation: Voter participation in the January 5 election was low, following the boycott by the BNP. Election Commission figures showed an average 40 percent turnout in the 147 constituencies that had contests, compared with more than 80 percent in 2009. No votes were cast in 153 constituencies that had only a single candidate.

In some instances the government interfered with the right of opposition parties to organize public functions and restricted the broadcasting of opposition political events. Jamaat's appeal of a 2012 Supreme Court decision cancelling the party's registration continued.

Participation of Women and Minorities: There are no laws preventing women or minorities from voting or participating in political life. Women are eligible to contest any of the 300 directly elected seats in parliament, and an additional 50 seats are reserved for women. There were 70 women in parliament, 20 directly elected and 50 chosen by political parties based on their proportional representation in parliament. The opposition leader, the deputy leader of parliament, and one cabinet minister were women. Two women served at the state ministerial level. Shirin Sharmin Chaudhury was re-elected as speaker of parliament.

There is no provision to reserve parliamentary seats for minorities.

#### **Section 4. Corruption and Lack of Transparency in Government**

The law provides criminal penalties for corruption by officials, but the government did not implement the law effectively. Human rights groups, the media, the Anticorruption Commission (ACC), and other institutions reported government corruption. Officials frequently engaged in corrupt practices with impunity.

Corruption: The ACC is the government agency charged with fighting corruption. According to a 2010 World Bank report, the government undermined the ACC's work and hampered the prosecution of corruption. The report stated the government filed far fewer corruption cases than the previous caretaker government and that a government commission recommended the ACC drop thousands of corruption cases. Transparency International Bangladesh cited a UN Convention Against Corruption civil society coalition report that stated in 2011 the government asked the ACC to withdraw 10,536 cases. The 16th constitutional amendment extended parliamentary impeachment power to the ACC, Election Commission, National Human Rights Commission (NHRC), and other constitutional commissions. Some in civil society stated the government was not serious about fighting corruption and that it used the ACC for politically motivated prosecutions. Transparency International Bangladesh asserted that political interference in the ACC's operations had rendered it a "toothless tiger." A 2013 amendment to the ACC Law removed the ACC's authority to sue public servants without prior government permission.

In September the ACC dropped all charges in the Padma Bridge corruption scandal, stating its investigators did not find any evidence of involvement of the accused in a corruption conspiracy.

The government took steps to address widespread police corruption. The inspector general of police continued to train police to address corruption and create a more responsive police force. No assessment of the training's effect on corruption within the police force was available.

The government subjected the judiciary to political pressure (see section 1.e.), and cases involving opposition leaders often proceeded in an irregular fashion.

Corruption remained a serious problem within the judiciary and was a factor in lengthy delays of trials, which were subjected to witness tampering and intimidation of victims. Several reports by human rights groups and corruption watchdog groups indicated growing public dissatisfaction with the perceived politicization of the judiciary.

Financial Disclosure: Candidates for parliament file statements of personal wealth with the Election Commission. The ACC dropped investigations of some politicians for amassing wealth unexplained by known sources of income after the subject politicians stated they made mistakes on their wealth affidavits. During the first eight months of the year, the ACC cleared or dropped investigations of approximately 1,600 individuals, mostly politicians or government officials. On October 12, authorities sent AL legislator Abdur Rahman Bodi to prison with pending ACC charges.

Public Access to Information: The law provides for public access to government information, but it was not effective. The Information Commission is responsible for implementing the law, which lists a few exceptions (due to national security) and establishes nominal processing fees. The commission has the authority to issue summons if individuals do not comply with a request for information and to compel them to give oral or written evidence under oath. Observers noted that the government filed few cases during the year due to limited understanding of the law and limited capacity to file and pursue requests for information. The commission conducted public outreach and training of public officials to encourage effective use of the law.

## **Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights**

A wide variety of domestic and international human rights groups generally operated independently, investigating and publishing their findings on human rights cases. Although human rights groups often sharply criticized the government, they also practiced some self-censorship. Government officials generally were not cooperative and responsive to their views.

The government continued to restrict the operations of Odhikar after the 2013 publication of an Odhikar report, which many independent observers believed significantly exaggerated the government's use of force during a Hefazat-e-Islam rally. The report included a count of resulting deaths that differed considerably from the official number and other estimates. Odhikar secretary Adilur Rahman

Khan and president Nasiruddin Elan were free on bail, but charges against them stemming from the NGO's reporting remained. Odhikar reported harassing investigations into its finances and a block on its receipt of foreign funds. Family members and Odhikar staff reported additional harassment, and claimed their telephone calls, e-mails, and movements were under constant surveillance by security officers.

The United Nations or Other International Bodies: The government required all NGOs, including religious organizations, to register with the Ministry of Social Welfare. Local and international NGOs working on sensitive topics, such as human rights, indigenous people, Rohingya refugees, or worker rights, faced both formal and informal governmental restrictions. International NGOs that provide assistance to Rohingya refugees reported the government impeded their work, although the International Organization for Migration reported increased cooperation by the government later in the year. These groups also claimed intelligence agencies monitored them. The government sometimes restricted international NGOs' ability to operate through delays in project registration, cease-and-desist letters, or visa refusals.

The government countered NGO criticism through the media, sometimes with intimidating or threatening remarks, and through the courts (see section 1.e.).

Government Human Rights Bodies: The NHRC has seven members, including five honorary positions. The NHRC had a small government support staff, but observers noted it was understaffed and underfunded. The NHRC's primary activity was educating the public about human rights, and the NHRC chairman made numerous media appearances. The International Coordinating Committee of National Institutions for the Promotion and Protection of Human Rights found the NHRC did not fully comply with international standards for such bodies. Specifically, the coordinating committee focused on the lack of transparency in selecting NHRC commissioners and the NHRC's lack of hiring authority over its support staff.

## **Section 6. Discrimination, Societal Abuses, and Trafficking in Persons**

The law specifically prohibits certain forms of discrimination against women, provides special procedures for persons accused of violence against women and children, calls for harsh penalties, provides compensation to victims, and requires action against investigating officers for negligence or willful failure of duty; however, enforcement was weak. Women, children, minority groups, persons with

disabilities, indigenous people, and sexual minorities often confronted social and economic disadvantages.

## Women

Rape and Domestic Violence: The law prohibits rape and physical spousal abuse but makes no specific provision for spousal rape. Gender-based violence remains a serious challenge. ASK reported 527 rape cases, including 72 attempted rapes, filed with police during the first nine months of the year. Of the women, 43 were killed after being raped and 166 were victims of gang rape. Seven women committed suicide after being raped. Of the rapes and attempted rapes, 42 victims were ages 13 to 18, 76 were ages seven to 12, and 24 were six or younger. According to human rights monitors, the actual number of rape cases was higher because many rape victims did not report the incidents due to social stigma or fear of further harassment and prosecution of rapists was weak and inconsistent. The Bangladesh National Woman Lawyers' Association (BNWLA) reported some perpetrators distributed photographs and videos of the rapes via cell phones and the internet to humiliate victims and their families. Two Hindu women were gang-raped on January 8 in Monirampur, Jessore; arrested suspects told police the rapes were retaliation for the Hindu community's voting in the January 5 parliamentary elections.

A UN multi-agency study on violence against women, released in 2013, surveyed almost 2,400 men between the ages of 18 and 49 in one urban and one rural area of the country. According to the study, 55 percent of urban male respondents and 57 percent of rural respondents reported they themselves had perpetrated physical and/or sexual violence against women. The study concluded the low prosecution rate of rapists supported a culture of impunity and encouraged further criminal acts of respondents who admitted to perpetrating rape. In total 88 percent of rural respondents and 95 percent of urban respondents reported they faced no legal consequences for rape charges.

The law criminalizes domestic violence. The government operated a confidential hotline and several crisis centers for victims of domestic violence. According to the BNWLA, from January through July, the crisis centers served 20,103 women, mostly physical assault victims, resulting in 4,542 legal actions and 96 cases resulting in penalties. Women's rights groups criticized the government for its overall inaction on domestic violence, and data were difficult to obtain. From January through September 24, the BNWLA reported more than 188 cases of violence against women, 60 of which resulted in the victim's suicide. ASK



reported 235 cases of domestic violence and 54 suicides in the first six months of the year, compared with 385 cases and 51 suicides in all of 2013. NGOs, with little assistance from the government, funded most efforts to combat domestic violence. Courts sent most victims of domestic violence to shelter homes, such as those run by the BNWLA. In a few cases, the BNWLA sent victims to prison as a transitory destination for short periods. There were some support groups for victims of domestic violence. According to a 2013 survey by the Bangladesh Bureau of Statistics, 87 percent of married women were abused by their husbands, with 50 percent reporting serious injuries. In two separate incidents in January, Joya Pal of Chittagong and Afia Zaman Mita of Dinajpur were burned alive by their respective husbands and in-laws.

Female Genital Mutilation/Cutting (FGM/C): No law specifically prohibits FGM/C. There were no reports of the practice in the country.

Other Harmful Traditional Practices: Some NGOs reported violence against women related to disputes over dowries. The BNWLA reported 1,208 cases of dowry-related violence from January through March. Of this number, 130 cases involved victims who were killed and eight involved victims who committed suicide. ASK reported 140 cases of dowry-related violence through June. Of this number, 83 cases involved victims who were killed and four involved victims who committed suicide.

A Supreme Court Appellate Division ruling allows the use of fatwas (religious edicts) only to settle religious matters; fatwas may not be invoked to justify meting out punishment, nor may they supersede existing secular law. Islamic tradition dictates that only those religious scholars with expertise in Islamic law may declare a fatwa. Despite these restrictions village religious leaders sometimes made such declarations. The declarations resulted in extrajudicial punishments, often against women, for perceived moral transgressions. The BNWLA reported 12 fatwas, including four for extramarital affairs, four for other sexual relationships, and two due to rapes.

Incidents of vigilantism against women occurred, sometimes led by religious leaders enforcing fatwas. The incidents included whipping, beating, and other forms of physical violence.

Acid attacks, although less common than in the past, remained a serious problem. Assailants threw acid in the faces of victims--usually women--leaving them

disfigured and often blind. Acid attacks often related to a woman's refusal to accept a marriage proposal or to land disputes.

The BNWLA reported acid attacks on 34 women through September 24. ASK reported nine acid attacks in the first three months of the year, compared with 44 in 2013. The law seeks to control the availability of acid and reduce acid-related violence directed toward women, but lack of awareness of the law and poor enforcement limited its effect. The government made efforts to punish offenders and reduce the availability of acid to the general public. The Commerce Ministry restricted acid sales to buyers registered with relevant trade organizations; however, the government did not enforce the restrictions universally. The law provides for speedier prosecutions of acid-throwing cases in special tribunals and generally does not allow bail. According to the Acid Survivors Foundation, the special tribunals were not effective, and conviction rates remained low.

Sexual Harassment: Sexual harassment in public and private, including in educational institutions and workplaces, is prohibited by a High Court guideline. Monitoring and enforcement of the guideline were poor; harassment remained a problem and sometimes prevented girls from attending school or work. The BNWLA reported 197 cases of harassment against women as of September 24, although many incidents went unreported. Twenty-two cases resulted in suicides of the harassed women. On September 13, a professor at Dhaka University asked a student for sexual favors in return for a midterm grade. The professor resigned two days later after other students confined him to his classroom for more than an hour.

Reproductive Rights: Couples and individuals had the information and means to decide the number, spacing, and timing of children, and the right to attain the highest standard of reproductive health free from discrimination, coercion, or violence. Couples and individuals had access to a full range of contraceptive methods, including long-acting reversible contraception and permanent methods. Pharmacies carried a wide range of family planning options and sold 33 percent of family planning supplies distributed, according to the 2011 Bangladesh Demographic and Health Survey. While low levels of income and education and traditional family roles sometimes served as barriers to access, and most low-income families relied on public family planning services offered free of cost, the survey showed no link between socioeconomic status and the use of family planning.

According to the 2010 Bangladesh Maternal Mortality Survey, the maternal mortality ratio declined by 40 percent during the preceding nine years, from 322 to

194 deaths per 100,000 live births. Approximately half of the maternal deaths were due to postpartum hemorrhage and eclampsia, with 7 percent attributed to obstructed or prolonged labor. According to the 2013 Utilization of Essential Service Delivery (UESD) survey, a skilled birth attendant delivered 34 percent of births, and 32.7 percent of the deliveries occurred at a health facility, compared with 31.7 and 29 percent, respectively, in 2011. Although 54.6 percent of women received at least one antenatal checkup from a medically trained provider, only 25.5 percent of women received the recommended four checkups following live births. Only 27 percent of the mothers received a postnatal checkup from a trained provider within two days of delivery.

**Discrimination:** The constitution declares all citizens equal before the law, with entitlement to equal protection of the law. It also explicitly recognizes the equal rights of women “in all spheres of the state and of public life.” Nevertheless, women do not enjoy the same legal status and rights as men in family, property, and inheritance law. Under traditional Islamic inheritance law, daughters inherit only half of what sons do, and in the absence of sons, they may inherit only what remains after settling all debts and other obligations. Under Hindu inheritance law, a widow’s rights to her deceased husband’s property are limited to her lifetime and revert to the male heirs upon her death.

Employment opportunities increased for women especially in the lower-wage garment sector. Women represented 80 percent of garment sector workers, but their workforce participation remained low in other parts of the formal economy. Women were sometimes subjected to abuse in factories, including sexual harassment. There were some gender-based wage disparities in the overall economy, but wages of women and men were comparable in the garment sector (see section 7.d.). Women faced difficulty obtaining access to credit and other economic opportunities, but the government’s *National Women’s Development Policy* included commitments to provide opportunities for women in employment and business.

## Children

Despite strong children’s rights legislation, there was a general lack of enforcement due to limited resources and capacity to implement and monitor these laws. Governance remained weak, with responsibility for children held by one of the least-resourced ministries, the Ministry of Women and Children’s Affairs. The legal age of majority is 18. The government, with the assistance of local and foreign NGOs, worked to improve children’s rights and welfare, enabling some

progress in improving children's health, nutrition, and education. The 2013 UESD survey found that 38.7 percent of children remained chronically malnourished, as defined by moderate or severe levels of stunting (height for age). This was a decrease from 41.3 percent of stunting in 2011.

Birth Registration: The law does not grant citizenship automatically by birth within the country. Individuals become citizens if their fathers or grandfathers were born in the territories that are now part of the country. If a person qualifies for citizenship through ancestry, the father or grandfather must have been a permanent resident of these territories in or after 1971. The government began a universal birth registration program in 2005, which increased the registration rate from 10 percent to 51 percent by 2010. Birth registration is required to obtain a national identity card or passport.

Education: Primary education was free and compulsory through fifth grade, and the government offered subsidies to parents to keep girls in class through 10th grade. While teacher fees and uniforms remained prohibitively costly for many families, the government distributed 318 million free textbooks to increase access to education. Enrollments in primary schools showed gender parity, but the percentage of girls declined in later secondary years. The 2010 Education Policy expanded compulsory primary education from grade five to grade eight; however, until the government amends the law to reflect the new primary education period, the policy remained unenforceable. Government incentives to families that sent children to school contributed significantly to increased primary school enrollments in recent years, but hidden school fees at the local level created barriers to access for the poorest families. Many families kept children out of school to become wage earners or to help with household chores, and primary school coverage was insufficient in hard-to-reach and disaster-prone areas. In some cases early and forced marriage was a factor in girls' attrition from secondary school.

Child Abuse: All forms of child abuse, including sexual abuse, physical and humiliating punishment, child abandonment, kidnapping, and trafficking, continued to be serious and widespread problems. Children were vulnerable to abuse in all settings: home, community, school, residential institutions, and the workplace. Of the 455 incidents of rape against females reported by ASK for the first nine months of the year, 135 were against girls under the age of 19. Of those child victims, 13 were killed after being raped, 29 were victims of gang rape, and two committed suicide after the crime. Local human rights groups reported

numerous rapes and rape attempts against girls under age 17 during the year (see also section 1.c.).

In March a teacher raped a five-year-old girl at her school in the Mirpur area of Dhaka. In November, hearing impaired, 10-year-old Moni Akhter was raped and strangled in the Islambagh area of Dhaka. Authorities arrested a man who had made previous advances toward Akhter.

Despite advances, including establishing a monitoring agency in the Ministry of Home Affairs, trafficking of children and providing care and protection to survivors of trafficking continued to be problems. Child labor and abuse at the workplace remained problems in certain industries, mostly in the informal sector, and child domestic workers were vulnerable to all forms of abuse at their informal workplaces.

Early and Forced Marriage: The legal age of marriage is 18 for women and 21 for men, but underage marriage was a widespread problem. Reliable statistics concerning underage marriage were difficult to identify because marriage and birth registrations were sporadic. The UN's *State of the World's Children 2013* report stated that between 2002 and 2011, 32 percent of women between the ages of 20 and 24 in Bangladesh were married by age 15 and another 34 percent were married by age 18. The government committed to eradicate early and forced marriage by 2035 and marriage under the age of 15 by 2021. In an effort to reduce child marriages, the government offered stipends for girls' school expenses beyond the compulsory fifth-grade level. The government and NGOs conducted workshops and public events to teach parents the importance of waiting until their daughters were 18 to marry.

Female Genital Mutilation/Cutting (FGM/C): No law specifically prohibits FGM/C. There were no reports of the practice.

Other Harmful Traditional Practices: Because of the low average age of marriage, some children were victims of dowry violence. ASK reported 12 cases of dowry-related physical abuse, including nine cases resulting in death, of children ages 13 to 18 during the first nine months of the year. The *Inqilab* newspaper reported that in June, Robiul Islam and his mother strangled Islam's wife, 17-year-old Rabeya Khatun, in a dowry dispute.

According to Odhikar, five children were victims of acid attacks in the first nine months of the year. ASK reported four acid attacks against 13- to 18-year-olds, two against seven- to 12-year-olds, and one against a child age six or younger.

Sexual Exploitation of Children: The penalty for sexual exploitation of children is 10 years' to life imprisonment. The 2013 Children's Act defines a child as anyone under age 18. Child pornography and the selling or distributing of such material is prohibited. The Pornography Control Act sets the maximum penalty at 10 years in prison coupled with a fine of 500,000 taka (\$6,250). In 2009, the most recent year for such data, the International Labor Organization (ILO) and Bangladesh Bureau of Statistics completed a baseline survey on commercial sexual exploitation of children. According to the survey, of 18,902 child victims of sexual exploitation, 83 percent were girls, 9 percent were transgender children, and 8 percent were boys. The survey reported that 40 percent of the girls and 53 percent of the boys were under age 16, the age of consent when the survey was conducted.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See country-specific information at [travel.state.gov/content/childabduction/english/country/bangladesh.html](http://travel.state.gov/content/childabduction/english/country/bangladesh.html).

### **Anti-Semitism**

There was no Jewish community in the country, and there were no reports of anti-Semitic acts, but some newspapers occasionally printed anti-Semitic articles and commentary.

### **Trafficking in Persons**

See the State Department's *Trafficking in Persons Report* at [www.state.gov/j/tip/rls/tiprpt/](http://www.state.gov/j/tip/rls/tiprpt/).

### **Persons with Disabilities**

The Disability Rights and Protection Act of 2013 provides for equal treatment and freedom from discrimination for persons with disabilities; however, persons with disabilities faced social and economic discrimination. The law focuses on prevention of disability, treatment, education, rehabilitation, social protection, employment, transport accessibility, and advocacy.

The law requires persons with disabilities to register for identity cards to track their enrollment in educational institutions and access to jobs. Giving unequal treatment for school, work, or inheritance based on disability is punishable with fines up to 500,000 taka (\$6,250) or three years' imprisonment. The law also created a 27-member National Coordination Committee charged with coordinating relevant activities among all government organizations and private bodies to fulfill the objectives of the law.

The NGO Action on Disability and Development estimated there were 16 million persons with disabilities, or 10 percent of the population. The government estimated a lower figure of approximately 1.5 percent of the population.

According to the NGO Action against Disability, 90 percent of children with disabilities did not attend public school. The government trained teachers on inclusive education and recruited disability specialists at the district level. The government also allocated stipends for students with disabilities.

The law contains extensive accessibility requirements for new buildings. Authorities approved construction plans for new buildings without compliance with these requirements.

The law afforded persons with disabilities the same access to information rights as those without disabilities, but family and community dynamics often influenced whether or not these rights were exercised. The law contains provisions for information and communications technology to be accessible to persons with disabilities through video subtitling, sign language, screen readers, or text-to-speech systems in public and private media outlets. The state television channel used sign language, but general practice by the media did not meet the requirements of the law.

The law identifies persons with disabilities as a priority group for government-sponsored legal services. The Ministry of Social Welfare, Department of Social Services, and National Foundation for the Development of the Disabled are the government agencies responsible for protecting the rights of persons with disabilities. Due to inaccessibility and discrimination, persons with disabilities were sometimes excluded from mainstream government health, education, and social protective services. The government reduced taxes on several hundred items, such as wheelchairs, hearing aids, braille machines, orthotics, and prostheses, designed to assist persons with disabilities.

Government facilities for treating persons with mental disabilities were inadequate. The Ministry of Health established child development centers in all public medical colleges to assess neurological disabilities. Several private initiatives existed for medical and vocational rehabilitation as well as for employment of persons with disabilities. National and international NGOs provided services and advocated for persons with disabilities. The government established service centers for persons with disabilities in all 64 districts, where local authorities provided free rehabilitation services and assistive devices. The government also promoted autism research and awareness.

### **National/Racial/Ethnic Minorities**

Violent attacks against religious minority communities continued, although the motivations for such attacks often appeared to be economic and/or political. In the first seven months of the year, ASK reported violence against Hindus destroyed 719 homes, 192 businesses, and 164 temples, monasteries, and statues; one person was killed and 193 injured. On January 5, the village of Malopara was attacked after low-caste Hindus voted in defiance of intimidation. On January 7, a group attacked local indigenous Mandi Roman Catholic farmers in a potato field and burned a home in Jamalpur district in northern Bangladesh in an apparent land dispute. Muslim neighbors rushing to defend their Mandi neighbors were also injured. Mandis asserted they generally enjoyed respectful relations with their longstanding Muslim neighbors but faced some difficulties with recent Muslim settlers seeking to seize indigenous properties. Discrimination against minorities in land tenure combined with the lack of witness protection at times made it difficult to stem land grabbing and to prosecute detained suspects.

On June 14, in the Mirpur area of Dhaka, nine members of an Urdu-speaking minority (sometimes referred to as Bihari) family burned to death in one of several houses torched in a four-hour attack by locals and police. A 10th person died of gunshot wounds sustained while attempting to rescue persons from the burning houses, which had their doors barricaded shut from the outside. Representatives of the Urdu-speaking community expressed fears of forced displacement from the increasingly valuable land where they lived in refugee-style camps.

Some members of religious minorities reported private discrimination in employment and housing. NGOs reported that national origin, racial, and ethnic minorities also faced discrimination. For example, some Dalits (lowest-caste Hindus) had restricted access to land, adequate housing, education, and employment.



## Indigenous People

The indigenous community experienced widespread discrimination and abuses, despite government quotas for participation of indigenous CHT residents in the civil service and higher education as called for in the 1997 Peace Accord. Indigenous persons from the CHT were unable to participate effectively in decisions affecting their lands due to disagreements regarding the structure and policies of the land commission. Strict security measures prevented some indigenous individuals and activists from combating discrimination.

Indigenous persons also suffered from societal violence. According to the Kapaeeng Foundation, an indigenous rights NGO, through July there were at least 26 cases of violence against indigenous women, including rapes, killings after rape, and abductions. The CHT Commission reported that through April at least 19 indigenous women were sexually assaulted. Sabita Chakma was gang-raped and killed in Khagrachari on February 15, allegedly by a group of Bengali laborers. Some reports quoted the local police superintendent as stating arrests were intentionally not made in order to prevent ethnic tensions ahead of a local election. Subol Hajong was killed in Sherpur on July 27 while attempting to defend his brother's wife from a rape attempt.

Other violence was associated with land grabbing. According to the CHT Commission, as of June, 42 indigenous people were killed or injured in attempts forcibly to occupy the land of 106 families. On May 30, a tea plantation manager led a large group in attacking the hilltop settlement of 72 indigenous families in Srimangal, leaving 20 injured. According to the Kapaeeng Foundation, the attackers later filed multiple police cases against the victims.

The constitution allows for affirmative action in favor of indigenous people, but indigenous groups reported effective affirmative action did not occur. Some NGOs reported discrimination against indigenous people in government hiring and promotions. According to the CHT Commission, less than half of indigenous children ages six through 10 were enrolled in school, in part due to a lack of indigenous-language-medium instruction. Indigenous people at times did not have access to adequate housing and health care.

Indigenous groups and NGOs reported monitoring by civilian and military intelligence agencies. In July the CHT Commission cut short its seventh reporting mission when the car carrying commission members was attacked with bricks and

stones outside a hotel in Rangamati, despite the presence of law enforcement officials.

The central government retained authority over land use. The land commission, designed to investigate and return all illegally acquired land, did not resolve any disputes throughout the year, since Bengalis and indigenous persons questioned the structure and impartiality of the commission.

Indigenous communities in areas other than the Hill Tracts reported the loss of land to Bengali Muslims. The government continued construction projects on land traditionally owned by indigenous communities in the Moulvibazar and Modhupur forest areas.

### **Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity**

Consensual same-sex sexual activity is illegal, but the law was not enforced. Lesbian, gay, bisexual, and transgender (LGBT) groups reported police used the law as a pretext to bully LGBT individuals, particularly those seen as effeminate men. Some groups also reported harassment under a suspicious behavior provision of the police code. The government acknowledged the existence of the LGBT population in its April 2013 Universal Periodic Review, contrary to its stance in the 2009 review, during which the foreign minister stated there were no LGBT individuals in the country. Additionally, the government allocated funds for the transgender population in the national budget.

In 2013 the government announced it would consider transgender persons, who numbered approximately 10,000 according to a Ministry of Social Welfare survey, as a separate gender, neither male nor female.

There were several informal support networks for gays, but organizations specifically to assist lesbians were rare.

Attacks on LGBT persons occurred occasionally, but those offenses were difficult to document because victims desired confidentiality. The Bandhu Social Welfare Society, a local NGO, reported 33 cases of assault, 82 cases of domestic violence, and 154 cases of discrimination against LGBT persons from September 2013 through September 2014. Strong social stigma based on sexual orientation was common and prevented open discussion of the subject.

## **HIV and AIDS Social Stigma**

Social stigma against HIV and AIDS and against higher-risk populations could be a barrier for accessing health services, especially for the transgender community and men who have sex with men. Gender norms sometimes prevented women from accessing HIV information and services. According to the People Living with HIV Stigma Index, HIV-positive persons at times faced social ostracism, detention, and denial of inheritance rights. The overall HIV infection rate was less than 0.1 percent.

There were limited reports of violence against HIV/AIDS patients. NGOs believed this was partly a function of the refusal of victims to identify themselves and an absence of research due to the relatively low rate of HIV/AIDS in the country.

## **Other Societal Violence or Discrimination**

Vigilante killings occurred. ASK reported at least 68 killings through mob violence as of June, but local human rights organizations acknowledged the number of reported cases probably represented only a fraction of the actual incidents. Illegal fatwas and village arbitration, which Odhikar defined as rulings given by community leaders rather than religious scholars, also occurred.

## **Section 7. Worker Rights**

### **a. Freedom of Association and the Right to Collective Bargaining**

The law provides for the protection of the right to join unions and, with government approval, the right to form a union, although restrictions on union registration remained. For example, the law requires a minimum of 30 percent of an enterprise's total workforce to agree to be members before the Ministry of Labor and Employment may grant approval for a union, and the ministry may request a court to dissolve the union if membership falls below 30 percent. The law allows only wall-to-wall (entire factory) bargaining units. Managerial staff, firefighting staff, security guards, and other employees designated by employers as "confidential" may not join a union. Civil service and security force employees are prohibited from forming unions. The Ministry of Labor and Employment may deregister unions for other reasons with the approval of a labor court. The law affords unions the right of appeal in the cases of dissolution or denial of registration.

The law provides for the right to conduct legal strikes but with many limitations. For example, the government may prohibit a strike deemed to pose a “serious hardship to the community” and may terminate any strike lasting more than 30 days. The law additionally prohibits strikes for the first three years of commercial production or if the factory was built with foreign investment or owned by a foreign investor.

Legally registered unions are entitled to bargain collectively with employers; this occurred rarely, but instances were increasing. Labor organizations reported in some companies workers did not exercise their collective bargaining rights due to their unions’ ability to address grievances with management informally or due to fear of reprisal. Workers at the Raj Washing Plant registered a trade union in January. When they submitted a charter of demands, management terminated 60 workers and filed false criminal charges against union leaders. In contrast, at the Masco Group of garment factories, an initially turbulent relationship resolved into regular union-management meetings on labor problems and workplace improvements.

The law includes provisions protecting unions from employer interference in organizing activities; however, employers, particularly in the ready-made garment industry, often interfered with this right. Labor organizers reported acts of intimidation and abuse, the termination of employees, and scrutiny by security forces and the National Security Intelligence. Labor rights NGOs alleged that some terminated union members were unable to find work in the sector because employers blacklisted them.

On August 27, masked men beat with an iron rod a union organizer and her husband outside the Global Trousers factory, resulting in the organizer’s hospitalization for head injuries. According to union organizers, police initially refused to accept the couple’s complaint.

Amendments to the labor law effective in 2013 require every factory with more than 50 employees to have an elected participation committee, but by year’s end the government had not issued the regulations necessary to implement the requirement.

A separate legal framework under the authority of the Bangladesh Export Processing Zone (EPZ) Authority (BEPZA) governs labor rights in the EPZs. EPZ factory officials interpreted EPZ regulations and applicable law narrowly and claimed they were exempted from broader labor law. EPZ law specifies certain

limited associational and bargaining rights for elected worker welfare associations, such as the rights to bargain collectively and represent their members in disputes. While the EPZ law provision banning all strikes under penalty of imprisonment expired in 2013, the law continues to provide for strict limits on the right to strike, such as the discretion of the BEPZA's chairman to ban any strike he views as prejudicial to the public interest. The law provides for EPZ labor tribunals, appellate tribunals, and conciliators, but those institutions were not yet established. EPZ worker associations are also prohibited from establishing any connection to outside political parties, unions, or NGOs.

With the exception of the limited associational rights and worker protections in the EPZs, national labor law prohibits anti-union discrimination. The Ministry of Labor and Employment formally investigated complaints of unfair union discrimination, although the Solidarity Center reports that it only investigated 11 of 32 cases of antiunion discrimination filed. A labor court may order the reinstatement of workers fired for union activities.

The government did not always enforce applicable law effectively. For example, the Labor Act establishes mechanisms for conciliation, arbitration, and dispute resolution by a labor court; civil servants and security forces are covered under different terms and conditions of employment and file cases in specified courts, such as an administrative tribunal; and workers in a collective-bargaining union have the right to strike in the event of a failure to reach a settlement. In practical terms, few strikes followed the cumbersome legal requirements, and strikes or walkouts often occurred spontaneously, especially at workplaces without unions. Resources at the Ministry of Labor and Employment were inadequate to inspect and remediate problems effectively, but the ministry took steps to increase its staff and technical capacity. Penalties for violating the law were increased in 2013, but absent implementing rules, the new penalties were not applied. Administrative and judicial appeals were subjected to lengthy delays. Union federations reported that police often failed to accept reports of violence or other crimes against organizers and prounion workers.

In August the NGO Affairs Bureau approved the 2013 registration application of shrimp sector NGO Social Activities for the Environment.

In April the court dropped the last remaining charge against labor activist Babul Akter.

## **b. Prohibition of Forced or Compulsory Labor**

The law prohibits all forms of forced or compulsory labor. Penalties for forced or bonded labor offenses are five to 12 years' imprisonment and a fine of not less than 50,000 taka (\$625). Inspection mechanisms that enforce laws against forced labor did not function effectively. Resources, inspections, and remediation efforts were inadequate. The law also provides that victims of forced labor have access to shelter and other protective services afforded to trafficking victims.

Some individuals recruited to work overseas with fraudulent employment offers subsequently were exploited abroad under conditions of forced labor or debt bondage.

Some instances of bonded labor and domestic service were reported, predominately in rural areas. Children and adults were forced into domestic servitude and bonded labor that involved restricted movement, nonpayment of wages, threats, and physical or sexual abuse (see section 7.c.).

See the Department of State's *Trafficking in Persons Report* at [www.state.gov/j/tip/rls/tiprpt/](http://www.state.gov/j/tip/rls/tiprpt/).

### **c. Prohibition of Child Labor and Minimum Age for Employment**

The law regulates child employment, depending on the type of work and the child's age. The minimum age for work is 14, and the minimum age for hazardous work is 18. The law allows for certain exceptions, permitting children who are ages 12 or 13 to perform restricted forms of light work. By law every child must attend school through fifth grade; 2013 amendments to the Labor Act further restrict adolescents' work in hazardous areas.

The Ministry of Labor and Employment's enforcement mechanisms were insufficient for the large, urban informal sector, and there was little enforcement of child labor laws outside the export garment and shrimp-processing sectors. Agriculture and other informal sectors that had no government oversight employed large numbers of children.

Under the Ministry of Labor and Employment's Child Labor National Plan of Action, the National Child Labor Welfare Council is charged with monitoring child labor at district and subdistrict levels. The government mandated child protection networks at district and subdistrict levels to respond to a broad spectrum

of violations against children, including child labor; monitor interventions; and develop referral mechanisms.

The government also developed a national program to eliminate the worst forms of child labor by 2015. The program includes monitoring workplaces and education for children and their families. The law specifies penalties for child labor violations, typically nominal fines of less than 5,000 taka (\$62.50). These penalties were insufficient to deter violations. The government occasionally brought criminal charges against employers who abused domestic servants, but in general, resources, inspections, and remedial action were inadequate.

Child labor was widespread, particularly in the informal sector and in domestic work. The ILO estimated 3.7 million children worked and that 1.3 million worked in hazardous sectors. Children were engaged in the worst forms of child labor, primarily in dangerous activities in agriculture. Children working in agriculture risked using dangerous tools, carrying heavy loads, and applying harmful pesticides. Children frequently worked long hours, were exposed to extreme temperatures, and suffered high rates of injury from sharp tools. Children also worked in such hazardous activities as stone breaking, dyeing operations, blacksmith assistance, and construction. Forced child labor was present in the fish-drying industry, which exposed them to harmful chemicals, dangerous machines, and long hours of work. In urban areas street children engaged in work such as begging, working as porters, shining shoes, collecting paper, and selling flowers. These children were vulnerable to exploitation, for example, being used to smuggle or sell drugs.

Children frequently worked in the informal sector in areas including the garment, road transport, manufacturing, and service industries. A 2012 survey of the unregistered garment sector in Dhaka, by the consulting firm ICF International, found that approximately one-third of workers were under age 18. The children in the survey reported they worked an average of six days a week for 10.5 hours a day.

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at [www.dol.gov/ilab/reports/child-labor/findings/](http://www.dol.gov/ilab/reports/child-labor/findings/).

#### **d. Discrimination with Respect to Employment or Occupation**

The labor law prohibits wage discrimination on the basis of sex or disability, but it does not prohibit other discrimination based on sex, disability, social status, or

similar factors. The constitution prohibits adverse discrimination by the state on the basis of religion, race, caste, sex, or place of birth and expressly extends that prohibition to government employment; it allows affirmative action programs for the benefit of disadvantaged populations. The government generally enforced these laws and regulations.

While wages for similar work within the garment sector were equal, women were generally underrepresented in supervisory and management positions. Some religious, ethnic, and other minorities reported discrimination, particularly in the private sector (see section 6.).

#### **e. Acceptable Conditions of Work**

The National Minimum Wage Board established minimum monthly wages on a sector-by-sector basis, with a lowest minimum wage of 1,500 taka (\$18.75). The board may convene at any time, but it must meet every five years in a tripartite forum to set wage structures and benefits industry by industry. By law the government may modify or amend existing wage structures through official public announcement in consultation with employers and workers. In the garment industry, the board set the minimum monthly wage at 5,300 taka (\$66.25). Wages in the apparel sector often were higher than the minimum wage, and wages in the EPZs typically were higher than general wage levels. None of the set minimum wages provided a sufficient standard of living for urban dwellers. The Center for Policy Dialogue, an independent think tank, reported a monthly wage of 6,725 taka (\$84) was reasonable to cover living expenses for a typical garment-sector worker. The minimum wage was not indexed to inflation (which averaged 7 to 8 percent annually), but the board occasionally made cost-of-living adjustments to wages in some sectors.

By law a standard workday is eight hours. A standard workweek is 48 hours but may be extended to 60 hours, subject to the payment of an overtime allowance that is double the basic wage. Overtime cannot be compulsory. Workers must have one hour of rest if they work for more than eight hours a day or a half-hour of rest for more than five hours' work a day. Factory workers receive one day off every week. Shop workers receive one and one-half days off per week. The law establishes occupational health and safety standards, and recent amendments to the law created mandatory worker safety committees.

The government did not effectively enforce minimum wage, hours of work, and occupational safety and health standards in all sectors. Resources, inspections, and



remediation were not adequate, and penalties for violations were not sufficient to deter violations.

The 2013 Rana Plaza building collapse killed 1,138 workers and injured more than 2,500. Authorities charged the building's owner, Sohel Rana, and others with criminal negligence and violations of the building code. While Rana was granted bail on the building code charges, he remained in custody on the other charges. Hundreds of former workers and relatives of the deceased continued to await back pay and compensation. In the aftermath of the collapse, private companies, foreign governments, and international organizations worked with the government to inspect more than 2,000 garment factories as of September, leading to 29 closures for imminent danger to human life. Many factories began to take action to improve safety conditions.

Workers' groups stated that the occupational safety and health standards established by law were sufficient but not routinely enforced. An exception was the garment industry, where independent inspections and worker education programs increased awareness of safety problems. While enforcement by the Ministry of Labor and Employment's industrial inspectors was weak due to the low number of labor inspectors, the inspection department reported that it recruited more than 200 inspectors during the year and increased its total staff from 314 to 993, of whom 575 were inspectors, although many of these positions were still being filled. Inspections were supposed to be unannounced, but inspectors sometimes notified factory owners of coming inspections. The law provides for a maximum fine of 25,000 taka (\$312.50) for noncompliance, but this did not deter violations.

Legal limits on hours of work were violated routinely. In the ready-made garment sector, employers often required workers to labor 12 hours a day or more to meet export deadlines, but they did not always properly compensate workers for their time. According to the Solidarity Center, workers often willingly worked overtime in excess of the legal limit. Employers commonly delayed workers' pay or denied full leave benefits.

Safety conditions at many workplaces were extremely poor, but the Solidarity Center and others reported significant safety improvements in the garment sector. Because of high unemployment rates and inadequate law enforcement, workers who demanded redress for dangerous working conditions or who refused to work under hazardous conditions sometimes risked losing their jobs. Factory fires continued throughout the year, with the Solidarity Center reporting 10 incidents

through September, compared with 32 in all of 2013. In May a fire originating in an electrical short circuit at the Kamaphuli Knitting and Siddique Knitting Fashion Park International Ltd. sock factories in Chittagong killed Arafat Rani and Iftekar Ahmed. In July a fire at the S. S. Sweater Ltd. factory in Gazipur injured 10 workers.

Delwar Hossain, owner of Tazreen Fashions where a 2012 fire killed 112 workers, was arrested in February. He was later freed on bail to allow him to resolve a hunger strike by unpaid workers at the Tuba Group, another of his garment factories. Hossain closed the Tuba factory and remained free as of October.

Few reliable labor statistics were available on the large informal sector in which the majority of citizens worked, and it was difficult to enforce labor laws in the sector. The Bangladesh Bureau of Statistics 2010 Labor Force Survey reported the informal sector employed 47.3 million of the 56.7 million workers in the country.